CERTIFICATION

The undersigned certifies that she has read and hereby recommend for acceptance by St. Augustine University of Tanzania, a dissertation titled. **Analysis and Effectiveness of Identification Parade in the Administration of Justice in Tanzania. A Case Study of Nyamagana District.** in partial fulfillment of the requirement for the degree of Bachelor of laws (LLB).

Miss Erasma Rutechura (supervisor) Signature ……. Date ……..

DECLARATION

I, CHIWINGA AUGUSTINO, do hereby declare to the best of my knowledge that this work whether in part or in full has never before been submitted in any University for any award.

CHIWINGA AUGUSTINO. Signature_____ DATE_____

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Also I would like to advance my thanks to Mr. Omary Kibwana of Attorney Generals Chamber (A.G OFFICE) for his invaluable support, and particularly for a fully granted permission to use the Chamber library for materials pertinent to this research. I also feel indebted to the Resident Magistrate of Mwanza Regional Court for awarding me an opportunity to use the Magistrate Court materials appropriate to this work.

My sincere gratitude should also go to Tanzania Police Force who helped me to lay down the general idea and the framework for this study. Likewise, for their access to conduct an interview with their officers.

Special thanks should go to my beloved Mother and my siblings Veronica, Julius and Asteria, for bearing with me during this entire strenuous job. For sure they gave me the courage of struggling in my studies because all their eyes are on me since my beloved Father was passed away in 2009. Those mentioned and unmentioned the author owes great thanks since, being pressed for space here; it is absolutely difficult to mention them all here.

DEDICATION

This work is dedicated to my cherished parents; My father Barnabas Ambrose Chiwinga may his soul rest in eternal peace **(R.I.P)** and my mother Mary N. Chiwinga who have always saturated my mind with the real meaning and the purpose of education in human life.

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Francis Raymond vs R(1994) T.L.R

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Tanzania Police Force and Auxiliary Service Act Cap 322 of 1953 (R.E 2002).

The Constitution of the Republic of South Africa Act 108 of 1996.

The criminal Procedure Act of South Africa of 1977.

British codes of practice established under the Police and Criminal Evidence Act 1984.

The American constitution of 1787 as ratified in 1788.

The United States of America Federal Rules of Criminal Procedure (1944) as amended in 2013.

The Uniform Evidence Act of Australia of 1975.

The Indian Code of Criminal Procedure of 1973

LIST OF ABBREVIATIONS

A.G	-	Attorney General
ALL.E. L.R	-	All England Law Report
C.A.T.	-	Court of Appeal of Tanzania
C.P.A	-	Criminal Procedure Act
CAP	-	Chapter
E.A.C.A	-	East African court of Appeal
ED	-	Edition
I.G.P	-	Inspector General of Police
Ibid	-	Ibidem (in the same place cited)
L.LB	-	Legume Baccalaureates
NO	-	Number
P.G.O	-	Police General Order
PG	-	Page
Q.B	-	Queens Bench
R	-	Republic
R.E	-	Revised Edition
S.A	-	South Africa
S.A.P.S	-	South Africa Police Service
SAUT	-	Saint Augustine University of Tanzania
ST.	-	Saint
T.E.A	-	Tanzania Evidence Act
T.L.R	-	Tanzania Law Report
VOL.	-	Volum**e**
VS	-	Versus

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ABSTARCT

The study explored the effectiveness of identification parade in the administration of justice in Tanzania. This work has given the way forward to various scholars and it depicts the observance of the effectiveness of the identification parade in the scope of its importance in preserving administration of justice in Nyamagana district where this work has been conducted.

Chapter one gives an introductory aspect of the study paving the way to the statement of the problem, objectives and significances of the research. It also prescribes the methodology used to carry out the study and the scope within which this research has based and the limitation of the study.

Chapter two of the study contains definition of key concepts and a lengthy discussion of the analysis and effectiveness of identification parade in the administration of justice in Tanzania.

In chapter three the research establishes, through data collected, the extent to which the effectiveness of identification parade procedure in their administration of justce. This chapter thus is a presentation of research findings.

At the end of this study, in chapter four, the chapter comes up with conclusive remarks, summing up on what has been discussed in the preceding chapters. The chapter finally poses some recommendations as to what the government , police and to court of law should do or observe when dealing with issue of identification parade.

CHAPTER ONE

GENERAL INTRODUCTION

1.0 Background of the Problem

Identification Parade was first recognized in England in Early 1800's and the identification parade was invented at this time with the explicit purpose of providing a better method of identification. In an identification parade the suspect is placed amongst other eight or more people and the asked is asked if she/ he can recognize the culprit of the accused.[1]

This is a good way to use ability of the witness to recognize someone rather than recall their features, but has also been found problematic.

Internationally, there is a recognition that identification parade need to be treated with caution that they need to be conducted according to specific principle for them to be fair.

1.1 Statement of the Problem

Tanzania is among of the most countries in the world which recognized the rule on identification parade to be meanest procuring the administration of justice. A lot of people have been sent to jail either because they were victims of mistaken identity therefore are victims of false accusation in the case of **Kichele Mrange vs R.**[2]

Whereby the jury should make sure that mistaken identity are completely ruled out before convicting a person.

[1]JW Shepherd, HD Ellis & GM Davies (1982) London *Identification Evidence*: A Psychological Evaluation at pg22.
[2] (1983) TLR at pg.158.

By for the most form of identification parade is the testimony of eye witness. Eye witness may have seen the actual commission of the offence or they may have seen something else which tends to connect the accused with the offence. Eye witness testimony that purpose to identify and as the person seen at the material time is notion is at high risk of unreliability.[3] Mistaken eye witness evidence of identity has been responsible that is why the study is eager to conduct an investigation on the effectiveness of identification parade with regards to the problem.

In cases where e the identity of the accused is not known to the eye witness. It is essential for the investigation officer to get such suspect identified from eye witness in test identification parade which has mainly two work to ensure investigation is proceeding on a right track and to ensure that the eye witness memory regarding the identity of the accused. The issue of eye witness memory although in practical is not such important but the jury must also consider these criteria while attending the accused persons in trial. Because the lunatic persons are incapacity to give the watertight evidence the he or she can not be attended. If his evidence will be taken there is likely of convicting an innocent persons.

Further there are certain principles which must be followed while conducting identification parade. The establishment of those principles can be examining the witness who conducted the identification parade

It is also true that the presence of police officer and the public republic prosecutor at the place of identification parade would not vitiate it when there was no prejudice against the accused.

[3] Interview conducted at Central Police Station Nyamagana at Mwanza.

1.2 Research Objectives

The study comprise of main and specific objectives.

1.2.1 Main Objective

To examine the effectiveness of identification parade with regard to the administration of justice in Tanzania.

1.2.2 Specific Objectives

- To asses the accountabilities of the judiciary machine courts, police and other related persons with regards to the proper procedure and rule of identification parade.
- To identify the legal protection on how law protects the conduct person who mistakenly sent to jail for improper procedure of identification parade.

1.3 Research Hypotheses

- Whether the Government machinery judicial system, courts and police are accountable to uphold a proper procedure of identification parade.
- Whether the identification is effectiveness with regards to the administration of justice in Tanzania.
- What legal protection does the law gives the accused persons who mistakenly convicted for an improper procedure of identification parade.

1.4 The Scope of the Study

The scope of the study is fixed within the geographical boundaries of Tanzania as the study is expected to be conducted specifically Nyamagana District in Mwanza city.

And the different theories of the tattle of this study and general provision of Constitution of Tanzania,[4] the Evidence Act, [5] and the Police Force and Auxiliary Service Act.[6]

1.5 Significance of the Study

The study seeks to identify the problems that arise due to lack of proper identification procedure and the dangers faced by the accused in the absence of proper identification procedure. It also tries to look into the issues that might give rise to mistaken identities, false identification and uncorroborated evidence.

1.6 Research Methodology

This study used library and field research in gathering information.

Primary data was obtained through, observation and interviews. Secondary data was obtained through documentary reviews which include text books, articles, journals, statutes and case law.

1.7 Data Analysis

Data collected have been analyzed qualitatively.

[4] Constitution United Republic of Tanzania of 1977.
[5] Cap 6 R.E 2004[G.N NO225 OF 1967.
[6] Cap 322 (Principle Legislation). R.E 2002.

1.8 Literature Review

Annegret Rust.[7] In court a witness will swear .This oath that the accused is the person whom saw committing the crime .This can lead to the conviction of a guilty criminal, but also can led to the conviction of an innocent person. Identification parade is often tested by means of identification parades which have an accepted part of police practice in most countries. The question comes what next if later the wrongfully convicted was found not the one who committed the crime. Thefore police and jury must take precaution in the case e involving identification parades.

Ian Dennis.[8] It is now trite that the eye witness evidence of identity carries significant risk of being mistaken. It took many years for the problem to be officially acknowledged, but there has been general agreement miscarriage of justice. *In 1972 the criminal law revision committee commented in the eleventh report* "we regard mistaken identification as by far the greatest cause or possible wrong connection will known cases of miscarriage of justice resulting from mistaken evidence of identity start with Adolf Beck who early in the last century twice connected of fraud on the mistaken identification evidence of 15 women (11) on the first occasion and (4) on the second. He spent several years mission as result of the first connection."

These issues of the systematic flaws of identification evidence and the difficult of evaluating identification evidence have greatly intended to let cognitive and social psychologists who have been conductor research on eye witness identification for many years. It is to their work that we can now turns as we examine in more details to research why this identification parade causing miscarriage.

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[7] Annegret Rust (1990) South Africa. *Identification parade :An empirical survey of legal recommendations and police practice in South Africa*:.2nd edition department of psychology , university of cape town press at pg.12.
[8] Professor Ian Dennis (2003) London *The law of evidence* 3rd edition. Sweet & Maxwell publishers) at pg.11.

Ratanlal Ranchoddass and Dhirajlal keshval Thakore.[9] The evidence of mere identification of the accused at trial for the first time is from its very nature inherently of weak character. It is considered a safe rule of prudence to generally look for corroboration of the sworn testimony of witness in court as for identity of the accused who are stranger to them, in the form of earlier identification preceding witness his ability. If in a case the intention is to rely on the identification of the suspect by a witness ability to identify should tested without showing him the suspect or his photograph or furnishing him the data for the accused persons.

Yarmey Andrews,[10]The training that police officers get with regard to identification parades is not standard and is not necessary for them to hold parades, thus is was felt that the best way to get an idea of what really happens at the parades would be to view several parades and then see how these compare to the principles set out by the law and by the police recommendations.

These can then also be analyzed to get an idea of what useful recommendations would be as to ways of improving identification parades. Access to identification parades is limited to certain people and thus watching the live parades was not an option, but once the videos of identification parades are admitted as evidence they are public property and the police video unit also made videos of identification parades available for use in this case.

Brian L.Cutler and Steven D.Penrod.[11] In criminal procedure, for a person to be found guilty of an accused of an offence all elements of the offence need to be proven by the Prosecution and further it must be proven for the judge to be sure that it was the defendant who committed the offence.

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[9] Ratanlal & Dhirlaj (2007) India. *The law of evidence* 2nd Edition Wadhwa & company publishers Nagpur.at pg 21.
[10] Yarmey Andrews, (2003), *Eye witness identification; guideline and recommendation for identification procedure*, Mellvile Publishers at pg 207.
[11] Cutler, Brian L. Penrod Steven.D. (1995) England. Mistaken Identification.Cambridge University Press.at pg 56.

Therefore, in a number of murder and aggravated robbery cases the main issues turn to be based on identification and possible mistakes as to who committed the offence. Therefore, in a number of murder and aggravated robbery cases the main issues turn to be based on identification parade and possible mistakes as to who committed the alleged or complained of the crime.

The judges have a number of a years recognized the problems related to witness being genuinely mistake in their identification of the identification of the defendant.

Further the other issue is based on the fact that a mistaken witness could be a convincing one putted before the court.

Van Heerden, T.J.[12] Asserts that when a witness declares that he is able to identify the offender, an identification parade must be held when the opportunity presents itself, and in every case a description must be taken and identification made before the witness can compare his observation with other witnesses, and for the same reason. Al line-up identification is commonly used when the suspect is in custody and there were witnesses to the crime, and the identification parades are redundant when a witness claims to know the offender personally. The author further explains that "redundant" means unnecessary. By this he means that if the witness knows the suspect(s), identification parades must not be conducted. Identification parade must be held when the witnesses mention that they can identify the suspect and the suspect is arrested.

[12] Van Heerden, T.J. (1982). *Criminalistics*. Pretoria: University of South Africa .At page 24.

Lee and Harris.[13] Identification is the process of using class characteristics to identify a particular object. The writer tried to differentiate between the process of recognition and the process of identification.

They state that recognizing that a stimulus is familiar is a relatively fast process that involves determining whether there is a match between a stimulus and representation that exists in memory. In recognition responses, stimuli that surpass a familiarity threshold are responded to as "old".

This can explain how a familiar, non-target face may be misidentified as "old". However, identification of a specific stimulus is a relatively slower process that involves recalling contextual information regarding the circumstances surrounding the initial perception and encoding of the stimulus. Identification involves determining, for example, whether a specific face was seen at the scene of the crime or at some other place.

1.9 Conclusion

There are different categories of identification parades and there are factors that may influence the success of the parade. For example, various factors may influence the witnesses' ability to identify the suspect, and a debate exists as to whether or not the suspect may refuse to stand on the parade. The benefits of identification parades include that they are less suggestive than other methods of 'picking out' such as pointing to a suspect in a prison yard or in the court.

[13] Lee, H.C. & Harris, A.H. (2000). Pretoria. Pretoria *Physical evidence in forensic science*. Tucson, Ariz.: Lawyers & Judges Publishers. Company.At page 12.

CHAPTER TWO

CONCEPTUAL FRAMEWORK, LAW AND PRACTICE

2.0 Introduction.

Under this chapter an attempt is made to layout the definition of the key word that does appear in this work. A considerable insight is made into the general concept to an identification parade and underlying principles derived from the influence to the general law over it and practice in Tanzania.

2.1 Definition of Key Concepts

Key concepts describes a set the parameters of the research topic. The following concepts are key to this study.

2.1.1 Identification Parade

Identification parade is a line up which consist of different people among them the accused, which gives the witness the opportunity to choose the person seen committing the alleged crime.[14] Identification parade is only carried out for selective crimes mainly murder and aggravated robbery. There are various methods of conducting an identification of an accused but in Tanzania the mainly used is identification parade.[15]

The feature of this procedure are that the suspect and eight other people are arrange in a line up the same principle, apply to their resemblance to the suspect that is the other people on the line up should have similar physical appearances and the should wear the same type of clothes and

[14] Australian Law Reform Commission, Evidence, ALRC pg. 26 (Interim Vol.1, (1995).
[15] Interview conducted at Central Police Station Nyamagana at Mwanza.

should stand in the same position as the suspect. The suspect is allowed to choose their position in the line if there are any unusual of the suspect each should conceal in so far as possible.[16]

2.1.2 Administration of Justice

The system first begins to operate when an offence is committed and either the victim or police detect it or it is reported to the police. There is no doubt that many offences go undetected and unreported and therefore unpunished.[17] It is the personnel activity and structure of the justice system-courts and police in the detection, investigating, apprehensions, interviewing and trial of persons suspected of crime.[18]

Criminal justice with particular reference to the criminal law is a compendious terms that stands for all the complexes of activity that operate to bring the substantive law of crime to bear,

or to the rule of law that govern detection, investigation, apprehension, interviewing and trial of person suspected of crime and those whose responsibilities it is to work within those rules.[19]

The criminal of justice is not confined to the courts; it encompasses offices of the law and others whose duties are necessary to ensure that the courts function effectively. The concern of the criminal justice is the fair, just, and impartial up holding of rights and punishment of wrongs according to the rule of law.[20]

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[16] Cutler, Brian L. Penrod Steven D. (1995) England. Mistaken Identification.Cambridge University Press.at pg.56

[17] Brown, M.F. (1998). Boston, *Criminal investigation: law and practice*. Mass.: Butterworth Heinemann Publishers. Pg.190.

[18] Hinz, T. & Pezdek, K. (2001). South Africa. *The effect of exposure to multiple lineups on face identification accuracy*. Law and Human Behavior. Pg.188.

[19] Becker, R.F. (2000) South Africa 3rd Edition volume 6 *Criminal Investigation*. Gaithersburg, Aspen Publishers .Page 270.

[20] D Ross, JD Read and M Toglia. (1994). England .*Adult Eyewitness testimony: Current trends and developments*. Oxford university Press .Page 356.

2.2 Different Identification Techniques.

Currently there are four different identification procedures conducted before the trial begins.[21]

a) Video identification

b) Identification parade

c) Voice Identification

d) Photograph Identification

2.2.1 Video identification

In video identification the witness is shown a set to images of the suspect and at least eight other people who need to resemble the suspect in general appearance and position in life. If there are two suspects of roughly similar appearance they may be shown together with at least twelve other people.

If the suspect has any unusual physical feature like scar like tattoos or and other visible marks steps must be taken to control conceal the location of the feature on all other images. The images shown may be moving or still images but shall as far as possible hove the same sequence to movement for all people.

2.2.2 Voice identification:

The Criminal Procedure Act allows method of taking a voice recording in order to facilitate the identification Any police officer in charge of police station or any police officer investigating an offence may take or cause to be taken measures prints of the hand, fingers feet, or toes of or recording of the voice photograph to or sample of the handwriting of and person who is charged with an offence, whether such person is in lawfully custody to the police or otherwise where

[21] Australian Law Reform Commission, Evidence .ALRC, Page26 (Interim) Volume 1,1995.

such measurement, police recordings photography or samples as the case may be are reasonable believed to be necessary for the identification of the person with respect to or far attending evidence as to the commission to an offence for which he is in custody or charged.[22]

2.2.3 Photograph identification

Any police officer in charge of police station or any police officer investigating an offence may take or cause to be taken measures prints of the hand, fingers feet, or toes of or recording of the voice photograph to or sample of the handwriting of and person who is charged with an offence, whether such person is in lawfully custody to the police or otherwise where such measurement, police recordings photography or samples as the case may be are reasonable believed to be necessary for the identification of the person with respect to or far attending evidence as to the commission to an offence for which he is in custody or charged.

2.3 The Purpose of Identification Parade

The lineup was designed to increase the accuracy to identification by circumventing the errors of suggestibility that could result in single-suspect viewing that the purpose of line-up is to permit witnesses to observe all persons in the lineup in order to make identification.[23] The police have adopted line-up procedure to ensure accurate fair identification. The cardinal importance of identification parade is to determine whether the witness has in fact a true picture of events.[24] There are also the purpose to identification parade is the test justly and accurately determines the

[22] Section 59(1) of Criminal Procedure Act, Cap 20 of 1985 R.E 2002.
[23] Gilbert J.N (2004). South Africa.*Criminal Investigation*. 6th Edition. Upper Saddle River, N.J: Pearson Prentice Hall page532.
[24] Bennet,Hess,(2001) London. *CriminalInvestigation*.6thEdition.BelmontCallif:Wadsworth/Thomson Learning, at page 179.

ability of the witness to recognize the offender and to eliminate the possibility of suggestion as a deciding factor in the identification.[25]

2.4 The Necessity to Identify During Investigation

The police have power to hold a parade to identity a suspect. The police may order the attendance of the suspect to attend and participate in the parade. No person who is required to attend and participate in an identification parade shall be and that to refuse as object to attend and participate in an identification parade shall be entitled to refuse or object to attend and participate in an identification parade or where a person without just cause or unreasonably refuses to attend the identification such person shall be punished.[26]

Any police officer in charge of a police station or any police officer in investigating on office may hold an identification parade for the purpose of ascertaining ascertain whether a witness can identify a person suspected of the commission of an offence.[27]

The necessity for holding an identification parade can arise only when the accused are not previously known to the witnesses who can claim to have seen the culprits at the time of occurrence as to identify them from the midst of other person without any aid or any other source. The test is done to check upon their veracity in others word the main objective of holding an identification parade during the investigation stage is to test memory of the witnesses based upon first impression and also to enable the prosecuting to decide whether all or any of them could be cited as eye witnesses all as of to the crime. It is desirable that a test identification parade should be conducted as soon as after the arrest of the accused. This becomes reason to

[25] O'hara Edward, (2003), Fundamental of Criminal Investigation, 7th Ed. Springfield Publishers,pg.27.
[26] Section 38(1) of Police Force and Auxiliary Service Act, Cap.322.
[27] Section 60(1) of Criminal Procedure Act, Cap.20 R:E 2002.

eliminate the possibility of the accused being shown to the witness prior to the identification parade.[28]

The cardinal importance of identification is determining whether the witness has in fact a true picture of events. The emphasis falls on the fair and accurate testing of witness ability for recognize the suspected offender.[29]

The identification is recommended of being for the best method of identification the main purpose of the identification parade is to test justify and accurately the ability of the witness to recognize the offered and to eliminate the possibility of suggestion being a deciding factor.[30] A line up should only be used when the identification by a witness is an important factor in the case also to eliminate doubt and identify the specific person linked to the crime.[31]

2.5 When an Identification Parade should be conducted

When a witness declare that he is able to identify the offender an identification parade must be held when the opportunity present itself.[32] And in every case description must be taken and identification made before the witness can compare his observation with other witnesses and for the same reason identification. Line up identification commonly used when the suspect is in custody and there were witness to the crime.[33]

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[28] Amitsingh Bhikamsing Thakur vs State Moharashtra.(2007) i.n.s.c10 (9th January 2007).
[29] Van Heerden, T.J (1982).*Criminalistic*. Pretoria ;University of South Africa Press. Pg.18.
[30]O'Hara, C.E. & O'Hara, G.L. (2003) London. *Fundamentals of criminal investigation.* 7th edition. Springfield, Charles C. Thomas Pg. 275.
[31] Ibid Pg. 275.
[32] Van Heerden, T.J (1982).Criminalistic. Pretoria ;University of South Africa press. Pg. 24.
[33] Bennett, W.W. & Hess, K.M. (2001). London. *Criminal investigation*. 6th Ed.Belmont, Calif, Wadsworth/Thomson Learning.

The identification parades are redundant when a witness claims to know the offender personally. Here redundant means unnecessary. By this he means that is the witness knows the suspect (s) identification parades must not be conducted.[34]

The necessity for holding an identification parade can arise only when the accused are not previously known to the witnesses who can claim to have seen the culprits at the time of occurrence as to identify them from the midst of other person without any aid or any other source. The test is done to check upon their veracity.

In others word the main objective of holding an identification parade during the investigation stage is to test memory of the witnesses based upon first impression and also to enable the prosecuting to decide whether all or any of them could be cited as eye witnesses all as of to the crime. It is desirable that a test identification parade should be conducted as soon as after the arrest of the accused. This becomes reason to eliminate the possibility of the accused being shown to the witness prior to the identification parade.[35]

The senior legal office mentioned that an identification parade should be held whenever the investigating office deem it necessary to hold one and an identification parade should be held during day time. It is trite of law that the test in an identification parade is to enable a witness to identity a person or person whom he or she had not known as seen before the incident.[36]

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[34] Van Heerden, T.J (1982). Pretoria ; *Criminalistic*. University of South Africa press. Page 24.
[35] Amitsingh Bhikamsing Thakur vs State Moharashtra.(2007) i.n.s.c10 (9th January 2007).
[36] Abdul Farijalah and another vs. Republic. Criminal Appeal no.99of 2008(Unreported) at pg 11.

2.6 Historical Background of Identification Parade

The method of identification parade was recognized in England in as early as 1800s. And the identification parade was invented at this time with the explicit purpose of providing a better method of identification.[37]

In an identification parade the suspect is placed amongst known innocent and the witness is asked if he/she can recognize the culprit, this is a good way to use the ability of the witness to recognize someone rather than recall their features, but also been found to be problematic. Internationally, there is recognition that identification parades need to be treated with cautions and that they need to be conducted according to specific principles for them to be fair. Even then they are not infallible procedure.[38]

In early Victorian south or Wales crowds of men some with blackened faces and other dressed as women smashed toll gates with sledge hammers in protest at high road taxes. The leader of the rioter was addressed as Becca hence the Rebecca riots. In June 1843, 300 protesters on horseback and 2,000 an foot marched through Carmarthen, led by a man in women clothing with long ringlets of horse hair. Authority could be mocked by such disguise at the same time as the rioters identifies were obscured. Identification at riots was traditionally a matter of prisoners. In the dock being too picked out by constable as witness. But more formal means of identification were developed and not only to identify rioters.[39]

One of the first recorded instances of an identity parade was in the case of the public protester at Queen Caroline' funeral procession in August 1821. The queen, the estranged wife of George IV

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[37]. JW Shepherd, HD Ellis & GM Davies. (1982) London *Identification Evidence*: *A Psychological Evaluation* at page 22.

[38] GL Wells (1993) London '*What do we know about eyewitness identification*?'.Oregon publishers. At pg 48.

[39] G. Koehnken, (1996) London '*Psychological Issues in eyewitness identification.*Briton publishers pg 205.

was an icon of radical discontent and the Prime Minister lord Liver pool, ordered the army to remove her body to her native Brunswick as quickly as possible to prevent protests. Soldiers opened fire when demonstrates erected barricades in London Oxford Street and killed two men.[40]

The whole of the first Regiment of life guards was paraded and examined by witnesses under the supervision of the Bow street magistrate who picked out individual soldiers. But the identification did not lead to procreations because the soldiers denied involvement to the inquest jury; which eventually returned a verdict of murder by an officer to the jury unknown. Identity parades and dock identification have subsequently proved unreliable, leading the deolin committee on evidence of identification in criminal cases, set up in the late 1970, to recommend that they should only be used if corroborated by other evidence.[41]

2.7 Identification Parade in Africa

The study traced how the identification parade is conducted in some of the African countries.

2.7.1 Zambia

There are various methods of conducting an identification of an accused but in Zambia the only method used is an identification parade.[42]

The features of this procedure in Zambia are that the suspect and eight other people are arranged in a line-up. The same principle apply to their physical resemblances to the suspect, that is the other people on the line up should have similar physical appearances and should wear the same type of clothes, and stand in the same position as the suspect . The suspect is allowed to choose

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[40] Brown, M.F. (1998). *Criminal investigation: law and practice*. Boston, Mass. Butterworth Heinemann pg.21.
[41] Cutler Brian L and Penrod, Steven D. (1995). London. *Mistaken Identification*..Cambridge University Press pg11.
[42] Ndulo, Muna and Hatchard, John. (1991). Zambia.*The law of Evidence in Zambia*: Cases and Materials. London Villiers Publishers. pg 9.

their position in the line if there are any unusual features of the suspect which should be concealed in so for as possible.[43]

In an identification parade, only one witness is to look at the images as line up at any one time fine. Before the procedure the witness is told that the suspect may not appear in the images or line up, and if they cannot make any positive identification they should say so they are addressed to look at each person as image individually and not to make decision before they have seen the rest of the people on the line up at least twelve or until they have considered them carefully. Instance where there is more than are witness each witness should not be allowed to mix with other witnesses to prevent him or her from interfering with the other witness yet to undergo the identification parade.[44]

In the case of **Toko vs. the people.**[45] The Court was held that;

"*It is necessary to point out that it is improper for a witness who has identified a suspect at an identification parade to be brought into contact with witnesses who are get to visit the parade. The police or any are responsible for conducting an identification parade most do nothing that might directly or indirectly prevent the identification from being proper fair and independent".*

Failure to observe this principle may in a proper case nulls the identification Investigating officer should take the greatest care to obtain and record the fullest possible description of assailants at the time when the initial report is made. If there after when the witness comes to give his evidence in court as to the features by which he alleges to recognize and identify the accused is

[43] Ndulo, Muna and Hatchard, John. (1991). Zambia.*The law of Evidence in Zambia*: Cases and Materials. London Villiers Publishers. Pg.10.
[44]Ndulo, Muna and Hatchard, John. (1991). Zambia.*The law of Evidence in Zambia*: Cases and Materials. London Villiers Publishers, pg.13.
[45] (1975) Z.R pg.196.

challenged as a recent fabrication. His written statement made to police immediately after the event will be available to rebut such an allegation.[46]

In Zambia on the other hand, the rights of an accused are outlined in ***Article 26*** which outline a fair trial. ***Article 26 (1)*** states that the accused has the right to legal representative.[47]

2.7.2 South Africa

The objective of South Africa police services (SAPS) as the following,[48]

- Preventing,
- Combating
- Investigating Crimes
- protecting and securing the inhabitants of the republic and their property,
- Upholding and enforce the law

The South African service (SAPS) Detective learning program: Module on Identification Parades, and the South African police service (SAPS) National instruction 2007, which both address the procedure in identification parade the earliest reported South Africa case involving identification parade was the year 1932 and 1935.[49]

In South Africa it is recommended that the investigating officer of the case should not be in charge of the parade as this will heighten the suspicion on of unfair conduct in the court.[50] The identification parade should also be recorded in an acceptable way-which is usually by

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[46] Crate vs.The people (1952).Z.R. pg 232.
[47] Chapter One of Law. Zambia constitution. Article 39(1).
[48] Article 205(3) of South African Constitution Act no 108.
[49] South African Police Service. 2006. *Annual report of the SAPS Mpumalanga for 2005/2006*. Mpumalanga: SAPS.Pg17.
[50] R v Dickman 1910 5 CA, R 270.

completing form SAPS 329 and it is suggested further that a photograph be taken of the composition of the parade as well of each identification that is made.[51]

A reasonable suspicion arises that a certain person was involved in the commission of the offence, but there is an insufficient evidential material available that positively identifies the persons as one who was involved in the commission of the offence.

- There is a person who may possibly be able to identify the said person during an identification parade as one who was involved in the commission of the offence.

Article 35(3) (j),[52] states that "*a person may not be compelled to give self incriminating evidence"*.

The constitution states that the right in the Bill of Rights may be limited only in terms of law of general application. That an accused has no right to refuse to participate in an identification parade.[53]

This however does not place the onus of ensuring a fair parade on the defense, but the onus for ensuring the parades is fair rest with the prosecution who is here represent by the police. The witness should not be allowed to see the suspect before parade and the on the parade should be strangers to the witness. South African courts have also recognized that identification parade are not infallible .Thus cautionary rule exist for identification parade as mistakes have been occurred even when the witness is being honest and the procedure of the parade was correct The witness should also be shown the parade separately and should not discuss the parade amongst themselves.[54]

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[51] S v Mlati 1984 (4) SA 629 (A).
[52] Constitution of South Africa Act 108 of 1996.
[53] South African Constitution Act no 108 of 1996. Article 36 (1).
[54] R v Nara Sammy 1956 (4) SA 629 (T).

2.8 Identification Parade in the World

The study also traced how some countries in the world conducting identification parade.

It will examine how different country in outside Africa practices the process of identification parade. Their enabling laws and cases which together touched the procedure and effectiveness of identification basing on their legal system respectively.

2.9 India

India has also codified some requirement that is to be met when dealing with issue of identification. The India Code of Criminal Procedure,[55] the code provides that the preserves of a police officer at the place where the identification parade is held or where any identification of property or place is made vitiates the whole evidence as to the identification and senders it inadmissible.

In the case of **Ram Kishan Mithanlal Sharma V state of Bombay**, in dealing with section 162 (1) of the Code of criminal procedure the court held the followings remarks.[56]

"On the other hand if after arranging for the parade, the police officers completely obliterate themselves and the whole process of identification is held under the exclusive direction and supervisor of in independent witnesses, so that no police is present at the time when the identifier identifies a particular person from a number of other as being the one concerned in the offence, such identification is free of the bar imposed by section 162 (1) and the evidence there of is perfectly admissible".

[55] Section I62(1).
[56].JK Soonavala. (1996) India. *The supreme Court on Criminal Law*.2nd Edition Volume 1 Bombay –Kaiser.Hind Press.pg 743.

It can be seen form the above cases that in India the criminal code has tried to emphasis the absence of a police officer when an identification parade is conducted to prevent the witness being influenced in identifying the person most preferred by the police. When a test identification has in fact taken place, its effect on the evidence of the witness in court must always be assessed and if there are any circumstances in connection with such earlier identification which render it unsafe.

Upon it for the purpose of such corroboration, the evidence of that witness must be rejected in spite of the fact that the he is a disinterested witness.

The code further goes on to state that long delay in holding the identification arrest of the accused raises suspicion as to its gaminess and effects the weight of the identification of the accused by the witness in court.[57]

2.10 Conclusion

From the above discussion it is clear that, the identification parade is an important technique in criminal investigation. There are different categories of identification parades and there are factors that may influence the success of the parade.

[57]JK Soonavala. (1996) India. *The supreme Court on Criminal Law*.2nd Edition Volume 1 Bombay –Kaiser.Hind Press.pg756.

CHAPTER THREE

FIELD FINDINGS AND ANALYSIS

3.0 Introduction.

This chapter makes an analysis of the findings of the study in the light of both statutory and case law. The hypotheses behind the problem that motivated the doing of this research stated in chapter one are examines in relation to these findings.

The study has examined how Identification Parade evidence should be conducted for evidence derived from Identification Parade to be admissible in court and the procedure followed in conducting Identification Parade.

3.1 Procedure for Conducting an Identification Parade in Tanzania

At common law it is recognized that the identification parade is the most reliable mechanism available for identification of the suspect. It is most undesirable that the police officers who have arrested a person on a charge of having committed a crime should arrange for potential witness to identify that person except at a properly conducted identification parade. Identification Parade has been found to be very civilized way of identifying the right accused who have done the crimes. Similarly, speaking generally an identification parade should whenever possible be held when it is designed that a witness should identify a person who is firmly suspected to be the offender or the who totally did the crime even though the act was done when there was no enough intensity.[58]

The conduct of identification parade is mainly conducted at the police station .The conduct of identification parade by the police is governed by Police General Order(PGO) No.232 made by

[58] Alexander vs The Queen(1984) 145, pg 395,401.

the Inspector General of Police under power vested on him under section 7(2) of the police force and Auxiliary Service promulgated for the first time in 1961.[59]

These rules are substantially the same as the instructions for identification parade discussed and approved in the case of **Mwango s/o Manana vs R.**[60] as stated below.

a) At a reasonable time prior to the parade, the offices in charge of the case will inform the suspect that he will be put up for identification .Any objection raised by the suspect will be noted and communicated by the officer in charge of the case to the officer conducting the parade before it is held

b) If the suspect desires the attendance of a solicitor as a friend, arrangement must be made for him to attend the parade if he wishes to do so. The person so attending will be required to remain in the background observing only and saying nothing

c) There should be eight or more persons on the parade for one suspect. If there are more than two suspects, parade will normally be held with different personnel being used to form each parade

d) When the officer conducting the parade has arrived and has taken charge of the proceedings, the suspect will be brought on the parade .The officer conducting the parade will explain the purpose of the parade and will ask the suspect if he has any objection to any person participating on the parade Any objection raised by the suspect will be noted in the Identification Parade Register and immediate steps taken to replace those persons to whom the suspect objects .The suspect will then be invited to stand where he pleases in the line .The position he selects will be noted in the register

[59] Interview Conducted at Nyamagana Central Police Station.
[60] (1936) 3 EACA, pg.29.

e) The first witness will be called to the parade by the officer conducting it, which will explain the purpose of the parade in the hearing of those on the parade and invite him or her to point out by touching any persons he or she identifies. Under no circumstances shall the witness be touched or led during his or her examination of the parade.

f) If the witness requires any person on the parade to walk, talk, see him with hat or off, this may be done but the whole parade must be asked to do like wise.

The officer conducting the parade will not cancel in his identification Parade register any identification or degree of identification made any material circumstances connected those with including wrong identification and any remark or objection made and any material circumstances. He shall ask the witness who makes the identification "***In what connection do you identify this person*** "and shall similarly record the precise details of the witness reply. No other questions are permissible.

g) Subsequent witness will be brought in to parade and handled in accordance with the same procedure set out in sub-paragraph (9) above

h) The officer conducting the parade will finally check his entries in the identification parade register and will sign in the space provided .The original copy will remain in register and duplicate removed and filed in the case file

There fore the court must satisfy itself that those procedures were met during the conduct of identification parade. Otherwise as it was stated in the case of **Tongoni Naata v R.**[61] the court held that;

[61] (1971) TLR 54 CAT.

" if I identification Parade was conducted with irregularities those irregularities reduced the probative value of identification parade".

The police officer should prepare a line up report indicating who was present at the line, time and place should be stated and a detailed description of all participants.[62]

3.2 Right of the Suspect on the Parade.

All persons are equal before law and are entitled without any discrimination to protection and equality before the law.[63] This provision from the constitution guarantees everyone who is detained including every sentenced prisoners has the right to choose and consult with a legal practitioner and to be informed of his right promptly.

Through PGO No. 232 the suspect should be informed of the purpose of the parade and the allegations against him (them) and that they should be give him (them) an opportunity to obtain a legal representative to be present at the parade. It was ruled in the case of **Mwango s/o Manaa v R.**[64] that if the suspect desires the attendance of a solicitor or friend, arrangement must be made for him to attend the parade if he wishes to do so. The person so attending will be required to remain in the background, observing only and saying nothing.

The police officer mentioned only that the suspect must be informed of their rights.

3.3 Reasons Why Witness should be kept Separate from those still going into the parade.

Witnesses are kept away from one another in order for them not to confer with any other witness. Witnesses are kept separate to prevent them from discussing the parade and the suspect.[65]

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[62] Interview Conducted at central police station Nyamagana at Mwanza.
[63] Article 13(1) of the constitution of the United Republic of Tanzania of 1977.
[64] Rule 2(c) of Police General Order No.232.
[65] Bennett, W.W. & Hess, K.M. (2001). England. *Criminal investigation*. 6th edition.

According to the rules enumerated in the case of **Mwango s/o Manana vs R.**[66] the witness should be kept separate, should not be allowed to discuss the case while waiting to be called upon to attend the parade and should not allowed seeing the parade being formed. The reasons for this are to avoid collusion and to increase the integrity of the process and the reliability of its results. The PGO puts the same arguments suggesting that the witness are kept separate so that they do not obtain information about what is happening in the parade room, and also that they do not discuss the case especially the description of the accused.[67]

In the case of **Abdullah bin Wendo and another v R**.[68]where it was stated;

"To convict an accused person relying on the identification by a single witness is dangerous but a conviction so based cannot in law be regarded as invalid".

The police officer should eliminate as far as possible the chance that someone may have told the witness which person to pick out if there are several witnesses they should be segregated or kept under supervision before the parade to prevent them from comparing notes about the criminal appearance of the suspects.[69]

3.4 Number of People to form the Identification Parade

There should be eight or more persons on the parade for one suspect. If there are more than two suspects, parade will normally be held with different personnel being used to form each parade.[70]

Belmont, Calif.: Wadsworth/Thomson Learning publishers, pg 180.
[66] (1936)3 EACA , pg 29.
[67] Interview Conducted at central police station Nyamagana at Mwanza.
[68] (1953) EACA, Pg 66.
[69] Interview Conducted at central Police Sstation Nyamagana at Mwanza.
[70] Rule 2(c) of Police General Order (PGO) NO 232.

The parade should consist of at least eight people who are similar to the accused in general appearance. At least five individual of comparable race height weight age and general appearance should appear in line up may have from five to ten people.[71]

The importance of standing of people with equal appearance is of the most important as the court have tried to rule the decision which favoring this position .In the case of **R v. Mohamed Allui.**[72] The court held that;

"In every case in which there is question to the identity of the accused the fact before there have been a description are matters of the highest importance of which evidence ought always to be given ; first of all of course by the person or persons who gave description and purport to identity the accused and then by the person or persons to whom the description was given."

In the case of **Francis Majaliwa Deus v R.** [73]where the identification parade was composed of three suspects, one of whom was the first appellant .Therefore they failed to comply with **rule 2 (n)** of PGO No 232.The court held that there was no credible evidence to warrant the conviction of the appellants as the identification parade failed to conform to PGO NO 232 and render the parade fatally irregular.

3.5 The Role of the Legal Representative in the [Parade

The legal representative in the parade is only allowed to observe, their presence does not place an obligation on the defense to ensure that the parade is conducted properly. It is true that the legal assistance is very important because it is constitution right, and the accused in on way or another is entitled to that fundamental right. In Identification Parade if the accused denied this

[71] Interview conducted in central police Station Nyamagana at Mwanza .
[72] 1942 (EACA),pg.72.
[73] Criminal Appeal No. 139 of 2005 at Mwanza (Unreported).

right of legal representative later in trial can raise an objection that the process of Identification Parade was conducted irregularly without concerning the known rules established. The purpose of the right to counsel has everything to do with the need to ensure that an accused has been treated fairly in the entire criminal proceedings.[74]

For purpose of preserving the right or equality of human beings human dignity shall be protected in all activities pertaining to criminal investigations sand process and in any other matter for which a person id restrained or in the execution of a sentence.[75]

The presence of legal representative when the e identification parade conducted is vital because it helps to monitor and check on legal requirements. If the suspect desires the attendance of a solicitor or friend arrangement must be made for him to attend the parade if he wishes to do so The person so attending will be required to remain in background observing only and saying nothing.[76]

To the question of interview what is the role of legal representative in identification parade the police officer replied that is to ensure that the right of the suspect are not violated and the procedure under PGO No. 232 have been followed properly.[77]

3.6 Instruction to be given to the Witness entering the Parade room by the Officer Conducting the Identification Parade

When the officer conducting identification parade has arrived and has taken charge of the proceedings. The suspects will be brought on the parade .The officer conducting the parade will explain the purpose of the parade and will ask the suspect if he has any objection to any person

[74] Joubert, C. (2001) South Africa. *Applied law for police officials*. 2nd Edition. Lansdowne: Juta Law Publishers, pg. 277.
[75] Article (6) (d) of the Constitution of United Republic of Tanzania.
[76] Rule 2(d) of PGO No 232.
[77] Interview Conducted at central police station Nyamagana at Mwanza.

participating in the parade. Many people who tend to be taken to participate in Identification Parade are ignorance; therefore it is a duty of the officer conducting Identification Parade to give instructions to those people on the purpose of the procedure. The instruction will give those people a clear picture of what is going to happen to them also their legal rights while they are on process Any objection raised by the suspect will be noted in the identification parade Register and immediate steps taken to replace those persons to whom the suspect objects.

T he suspect then will be instructed to stand where he please in the line. The position he selects will be noted in the register.[78]

Apart from that instruction for the suspect side also the police officer will be require giving instruction to the witness sides. The member in charge of the parade should always tell the witness.[79]

- To keep an open mind
- That the person who committed the crime may or may not be among those present
- That just because the person is in custody does not mean that they are guilty of a crime.
- No to discuss the identifications with any other witness.

According to Police General Order No. 232, the witness should be informed as follows. The witness will be called to the parade by the officer conducting it who will explain the purpose of the parade in hearing of those on the pared and invite him or her to point out by touching any person he or she identifies .Under no circumstance shall the witness be touched or led during his or her examination of the parade. The officer conducting the parade is enjoined to ask the

[78]Rule 2(d) of the Police General Order No.232.
[79] Interview Conducted at Central Police Station Nyamagana at Mwanza.

witness who makes identification **"*In what connection do you identify this person*?"** and shall similarly record precise details of the witness reply.[80]

3.7 Completion of the Identification Parade

The proceedings at the parade should at the time of the parade to be recorded by the police officer in charge of the parade. The officer conducting the parade will finally check his entries in the identification parade register and will sign in the space provided. The original copy will remain in the register and the duplicate removed and filed in the case file.[81]

The recording of identification parade it serves a good memory refreshing tool for officer conducting the parade while the witness stand also structured chronological and orderly system .Recording is essential in order to ensure that the accurate account of the event can later be furnished to the court. There fore it is fatal for the completion of identification because at later the evidence extracted from the parade will be used in the court.[82]

In the case of **R v Mwango s/o Manana vs R.**[83] rule 2 stipulates that;

"*At the termination of the parade or during the parade the officer asks the accused if he satisfied the way parade was conducted. In a fair manner and make a note of his reply. The failure to comply with this requirement shall render the procedure of identification parade irregular one*".

In the well celebrated case of **Raymond Francis v R.**[84] the appellant had also complained among others that he was no asked if he was satisfied that the parade was conducted in a fair manner. The court held that;

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[80] Rule 2(f).
[81] Rule 2(h) of the Police General Order No.232.
[82] Interview Conducted at Central Police Station Nyamagana at Mwanza.
[83] (1936). EACA , pg 29.
[84] (1994) TLR pg.100.

"In those circumstances it appears to us that the identification parade was not carried properly in terms of the applicable procedure set out in PGO No. 2322 as such of little value of evidence against the appellant".

3.8 Effectiveness of Identification Parades in the Administration of Justice in Tanzania

The evidence from identification is used in the court of law in order to determine whether the accused is the one who committed the crime or not. Court should be very rational in accepting the evidence from Identification Parade because in many situation people are sentenced by relying on evidence of identification parade which were conducted without adhering proper procedures, as stated in the case of **Godfrey Richard Vs R**.[85]

The evidence extracted from the identification parade is taking with precaution in its admissibility .The aim of taking with precaution this evidence is to avoid sentencing a person who was mistakenly or wrongfully identified by the witness therefore miscarriage of justice.[86] In any criminal case the evidence presented must be competent relevant and material to be admissible before the court.

In much celebrated case of **Waziri Amani v R.**[87] the court stated the following criteria

"*In a case involving evidence of visual identification no court should act on such evidence unless all possibilities of mistaken identity are eliminated and that the court is satisfied that the evidence before it is absolutely watertight*.

The court of law therefore has to consider the followings criteria's;

- The period under which the accused was under observation the witness.

[85] (2008) Cr.App. No.365 pg.21 (unreported).
[86] Interview Conducted at Central Police Station Nyamagana at Mwanza.
[87] (1980) TLR, pg.250.

- The distance separating the two during the said observation.
- If it is night whether there was a sufficient light.
- Whether the witness has seen the accused before and if so when and how often.
- In the course of examining the accused did the witness face any obstruction which might interrupt his concentration
- The whole evidence before the court consider were there any material impediments or discrepancies affecting the correct identification of the accused by the witness.

In every case in which there is question as to the identity of the accused the fact of there having been a description given and the terms of that description are matter of the highest importance of which evidence ought and always to be given; firs of all of course by the person or persons who gave the description and purport to identify the accused ad then by the person or persons to whom the description was given.[88]

Identification parades have their legal roots in Section 60 and PGO No 232 issued by Inspector General of Police from time to time but they trace their origin in the case of **Mwango s/o Manaa v R .**[89]

Also there is issue of single witness whether it is favorable to rely on the evidence gained from identification parade. Subject to certain well known exception it is trite law that a fact may be proved by the testimony of a single witness but this rule does not lessen the need for testing with the greatest care the evidence of a single witness respecting identification, especially when it is known that the conditions favoring a correct identification was lacking .In such circumstance what is needed is other is other evidence whether it be circumstantial or direct, pointing to guilt

[88] R v Mohammed Allui(1942) EAC, pg 72.
[89] (1936). EACA, pg 29.

from which judge or jury can reasonably conclude that the evidence of identification although based on the testimony of a single witness can be accepted as from the possibility of error.[90]

A single witness can prove criminal case; but there is need of this evidence to be corroborated. The conviction of the appellant having been based on the evidence of identification by a single witness is unfavorable conditions would be safe if there was corroboration. Since there was no corroboration the conviction can not be said to be safe.[91]

The next point for consideration regarding the effectiveness of identification Parade and the administration of justice, and what are consequences of non compliance of PGO No 232.

That in order to be lawful and identification parade must conform to the statutory requirements which are contained in PGO No.232.I will reproduce it for future guidance of Police Officers who finds it necessary to mount identification parades. I find this important because failure to conform to PGO No.232 will render the parade fatally irregular.[92]

To convict person on the evidence based solely on the identification parade is admissible if it will be proved beyond reasonable doubt that the suspect was sufficiently identified by the witness. Where the evidence alleged to implicate an accused is entirely of identification parade that evidence must be absolutely watertight to justify a conviction.[93] In the circumstance of case involving the evidence of identification parade the emphasize is put to the witness to test if they could identify the accused person as the sane person whom she saw on the date of incident. The evidence of eye witness is tend to be corroborated in order to measure its accuracy, also the jury

[90]Abdulla bin Wendo and Another v R (1953)(EACA), pg 66.
[91]Godfrey Richard v R. (Criminal Appeal NO 365 Of 2008) At Dodoma Massati J.at pg. 21.
[92] Haji Tausi Swai & Abrogast Kimario v Republic (Unreported) Criminal Appeal No 90 of 2002.High Court at Mbeya (Mackanja J).
[93] Thairu S/O Muhoro and Another v R (1954)21 EACA ,pg 187.

should consider to ask the eye witness if that accused person is person he or she knows for a long time or just she or he seen the accused when the incident occurred.

The court of appeal stated in the case of **Abdull farijallah v R.**[94] "*That it is trite law that the test in an identification parade is to enable the witness to identify a person or persons whom he or she had not known or seen before the incidents".*

3.9 Compensation for Persons who wrongfully convicted as a Result of mistaken Identity

Where it is established on evidence that a person has been convicted on mistake identifications as a result of which he is, punished or he suffers any loss or injury, that person or his legal representative if that person dies, shall be entitled to such reasonable compensation as if he were a victim of crime.[95]

3.10 Conclusion

Identification Parade is an important technique in criminal investigation. The evidence of an identification parade is admissible in court. A suspect is a person suspected to have been involved in the commission of a crime. The investigating officer must know that their presence is not required at the identification parade. The identification parade is said to be conducted fairly if the police officer involved in the identification told the suspect about the purpose of the parade

[94] Criminal Appeal Appeal No 99 of 2008(Unreported).
[95] Section 61(1) of criminal Procedure Act Cap 20 of 1985 R: E 2002.

CHAPTER FOUR

CONCLUSION AND RECOMMENDATIONS

4.0 Conclusion

The aim of the research – namely, the Analysis and Effectiveness of Identification Parades in the Administration of Justice in Tanzania. It is of the utmost importance that the procedures followed in conducting an identification parade are the most effective, and this research gives guidelines and procedures to the investigators regarding the use of the identification parade in criminal investigations. It has been found that the police General Order No 232(PGO) provide the guidelines rules for a proper conduct of identification parades. Therefore it the duties of the police officers to conform with those extracted rules in order for the evidence from identification parades to be Admissible to the court.

Also the courts in many circumstances have done their duties properly by examining deeply on the effectiveness of evidence solely basing on identification parades, courts in many cases have referred to those rules under PGO if were properly followed by the police officer who conducted the identification parade. If the PGO is not properly adhered it can to miscarriage of justice in Tanzania.

This work have found that police officers when they conduct identification parade they done many mistake like mixing the witness inn the same place a thing which reduced the weight of identifications parade and when the case moved to court the decisions which came out is the acquittal of the accused persons. It is true that if the identification parade is conducted properly,

It can be fruitful in convicting right accused persons and when conducted without following the guidelines of PGO it can lead to convicting an innocent person or releasing of guilty person.

Identification parades have various advantages like it enables the investigating officers to obtain identification evidence that provides more information than that contained in a witness's verbal description of the culprit, it restricts legal and human error to a minimum in identification, it ensures accurate, fair identification, also adds sufficient evidence to the existing evidence, confirms the identity of the suspect. Police officer needs to conform to the rules established under the PGO NO 232 in order to reach those advantages and facilitate the effectiveness of identification parades in the administration of justice in Tanzania.

4.1 Recommendations

Drawing from the findings and conclusion, the researcher has come up with the followings recommendations.

4.1.1To police officers

It is recommended that the police investigators to be familiarized with the concept of criminal investigation. The investigators must be made aware of the importance of an identification parade it is suggested that there must be a specific course presented to the investigators on the factors that may influence the abilities of a witness or victim to do a pointing out on an identification parade.

Also the police officer should know that if the witness successfully points the person whom he alleged to be the one, the police officers should maintain the presumption of innocence until found guilty by the courts.

It is recommended that the investigators shall familiarize themselves with the procedures of when and how to conduct an identification parade by walking on guidelines of the stipulated Police General Order NO 232 and the landmark cases in Tanzania at large space.. The

investigating officers must be taught, about the objectives of investigation the person in charge of the identification parade should make sure that the identification parade registry is properly completed.

4.1.2 To courts of Law

Judges and magistrate while the case is brought before them on the evidence solely basing on identification parades must look if the police officer who conducted the parade was conform and implement to the rules established by the **Police General Orders (PGO) No. 232** and the rules established in the case of **Mwango s/o Manana v R.**[96] They should consider the evidence of identification parade with caution while determine the case in order to give a just and fair judgment to the accused persons.

4.1.3 To government

It should increase the budget to the Police Department especially to the criminal investigations, resources and facilities like enough buildings are of the most importance. It should bring the modern technology of conducting identification like the introduction of one-way glass wall and motion and still pictures.

When this study was conducted was found that sometimes the process of identification was done irregularly because of lack of facilities that's why witness were mixed in one room a thing which reduced the credibility of evidence of identification parade.

[96] (**1936**) **EACA**.pg.29.

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